

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Lily Carayannis	Team: Team # 1	CCRB Case #: 201303865	☐ Force	☒ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☒ Injury
Incident Date(s) Thursday, 05/09/2013 6:40 AM	Location of Incident: § 87(2)(b) and the 81st Precinct stationhouse.		18 Mo. SOL 11/9/2014		Precinct: 81
Date/Time CV Reported Thu, 05/09/2013 11:12 AM	CV Reported At: Precinct	How CV Reported: In-person	Date/Time Received at CCRB Thu, 05/09/2013 11:12 AM		

Complainant/Victim	Type	Home Address
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)

Witness(es)	Home Address
§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)

Subject Officer(s)	Shield	TaxID	Command
1. POM Diery Louis	29819	940395	081 PCT
2. POM William Brown	10099	947989	WARRSEC
3. SGT Eric Samuels	01464	923106	WARRSEC
4. POM Eric Ortiz	12565	942297	WARRSEC

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. SGT Steven Slade	01783	927530	081 PCT
2. SGT Jonathon Zocchia	5371	947636	WARRSEC
3. DT3 Marlon Key	06144	936863	WARRSEC
4. DT3 Shiraz Khan	00539	944012	WARRSEC
5. DT3 Steve Laumonier	05760	930541	081 DET
6. POF Antoinette Santana	07596	939415	081 PCT

Officer(s)	Allegation	Investigator Recommendation
A.POM William Brown	Abuse: PO William Brown entered and searched § 87(2)(b) in Brooklyn.	§ 87(2)(b)
B.POM Eric Ortiz	Abuse: PO Eric Ortiz entered and searched § 87(2)(b) in Brooklyn.	§ 87(2)(b)
C.SGT Eric Samuels	Abuse: SGT Eric Samuels entered and searched § 87(2)(b) in Brooklyn.	§ 87(2)(b)
D.POM Diery Louis	Discourtesy: At the 81st Precinct stationhouse, Diery Louis acted discourteously toward § 87(2)(b)	§ 87(2)(b)
§ 87(2)(g), § 87(4-b)	§ 87(2)(b)	§ 87(2)(b)

Case Summary

On May 9, 2013, § 87(2)(b) filed the following complaint at the 81st Precinct stationhouse (encl. C1-2) and SGT Steven Slade of the 81st Precinct forwarded the complaint to the CCRB (encl. C3-4) and IAB (encl. C5-6) on the same day.

On May 9, 2013, at approximately 6:40 a.m., officers from Brooklyn North Warrant Squad entered § 87(2)(b)'s house at § 87(2)(b) in Brooklyn. After their departure, § 87(2)(b) went to the 81st Precinct stationhouse to file the complaint. The following allegations arose as a result:

Allegation A: Abuse of Authority— PO William Brown entered and searched § 87(2)(b) in Brooklyn.

Allegation B: Abuse of Authority—PO Eric Ortiz entered and searched § 87(2)(b) in Brooklyn.

Allegation C: Abuse of Authority—SGT Eric Samuels entered and searched § 87(2)(b) in Brooklyn.

§ 87(2)(g)

Allegation D: Discourtesy—At the 81st Precinct stationhouse, PO Diery Louis acted discourteously toward § 87(2)(b)

§ 87(2)(g)

§ 87(2)(g), § 87(4-b)

This case was not eligible for mediation.

Results of Investigation

Civilian Statements

Complainant/Victim: § 87(2)(b)

- § 87(2)(b), female, black, § 87(2)(b), brown hair, and brown eyes. § 87(2)(b)

Calls to 911

§ 87(2)(b) called 911 on May 9, 2013 at approximately 7:07 a.m. § 87(2)(b) stated that she was a female who was alone in her house, that she was not dressed, and that officers were inside. In the background, male voices can be heard, but what they are saying is not clear. § 87(2)(b) asked the male voices for a copy of the warrant. The 911 operator asked § 87(2)(b) what her emergency was numerous times, but § 87(2)(b) responded only by saying that it was an emergency (encl. C7).

§ 87(2)(b) called 911 again on May 9, 2013 at approximately 7:19 a.m. § 87(2)(b) called

because detectives entered her house stating that they had a warrant. She woke up to discover officers in her house and that by the time she woke up the officers had entered a number of rooms and closets in her house. She was alone in the house and she did not have any clothes on when they entered. The officers stated that they had a warrant for her brother, but they refused to show her the warrant. § 87(2)(b) stated that she told an officer that she did not have any clothes on and that the officer came back and watched her as she tried to get dressed.

§ 87(2)(b) also stated that the officers had been to her apartment on another date and had arrested one of her brothers. During this incident, the officers said they were looking for her other brother on the basis of the prior incident (encl. C8).

Statements to Medical Providers

§ 87(2)(b) received medical care at § 87(2)(b) on § 87(2)(b) at § 87(2)(b). She told the medical provider that she had an altercation with police and that her back was in pain. She also stated that her forefinger and thumb were numb ever since she was handcuffed (see privileged file).

CCRB Statement:

§ 87(2)(b) provided a statement when she filed her complaint at the 81st Precinct stationhouse (encl. C1-2), she also provided a telephone statement on May 14, 2013 (encl. C9-10), and an in-person statement on May 31, 2013 at the CCRB (encl. C11-17). § 87(2)(g) Subsequent contact attempts have been made to obtain additional information, including five telephone calls and fieldwork to § 87(2)(b) on September 24, 2013 and January 15, 2014. § 87(2)(b) did not respond to these contact attempts.

On May 9, 2013, at approximately 6:40 a.m., § 87(2)(b) was asleep alone in her bedroom. § 87(2)(b)'s bedroom is on the fourth floor of a four story brownstone in Brooklyn. Also on the fourth floor a bedroom and two bathrooms that belonged to her brother, § 87(2)(b). Through § 87(2)(b)'s bedroom there is a door that accesses the roof of the building. The entire building is a private home owned by § 87(2)(b)'s family.

At approximately 6:40 a.m., PO William Brown, who was identified via the investigation and who was described as a 5'5" tall light-skinned Hispanic male officer in an NYPD jacket with dark hair and a slightly unshaven face and whose badge number was similar to 1099, knocked on her bedroom door and announced that he was from the NYPD. He told § 87(2)(b) that he was looking for her brother, § 87(2)(b). PO Brown opened her bedroom door. § 87(2)(b) was in bed and was completely naked under her covers. § 87(2)(b) could hear the police radios and footsteps throughout her house. § 87(2)(b) informed PO Brown that § 87(2)(b) was not there and she asked PO Brown if her other brother, § 87(2)(b) was home. § 87(2)(b) and § 87(2)(b) both lived with § 87(2)(b). No one except § 87(2)(b) was in the entire building. § 87(2)(b) typically leaves at around 6:30 a.m.

§ 87(2)(b) asked PO Brown if she could get dressed, and he walked away from her door. As § 87(2)(b) stood up with the blanket wrapped around her, PO Brown came back to the door and began speaking with her. § 87(2)(b) did not recall the conversation at this point as she was emotional and wanted to get dressed. She told PO Brown that he said she could get dressed and PO Brown moved out of the door frame. § 87(2)(b) dressed and exited her room. § 87(2)(b) saw a human shadow coming down the stairs from the door with roof access, but she did not approach the doorway.

§ 87(2)(b) went to the third floor, where the kitchen, living room, dining room, and a bathroom are located. SGT Eric Samuels, who was identified via the investigation and who was described as a 6'2" tall black male officer in an NYPD jacket, was standing at the base of the stairs. § 87(2)(b) spoke with SGT Samuels and she asked if § 87(2)(b) was home. At one point § 87(2)(b) called 911 to report the officers in her house, as she did not know if the officers

were legally allowed to be in her house and because she was scared to be alone with the officers in the house. § 87(2)(b) also called § 87(2)(b). SGT Samuels spoke briefly on the phone with § 87(2)(b) and asked him if he knew where § 87(2)(b) was. The officers left § 87(2)(b)'s house from the front door. The officers were in her house for approximately 10 minutes. § 87(2)(b) described three additional officers who were in her house. She described DET Marlon Key, who was identified via the investigation, as a black male officer with dread locks, PO Eric Ortiz, who was identified via the investigation, as a 5'9" tall, Hispanic male officer who had brown facial hair and who was in his late thirties, and DET Khan, as a bald, stocky black male officer. § 87(2)(b) recognized the officers as they had been in her house before for a warrant for § 87(2)(b) in April 2013.

§ 87(2)(b) dressed and walked to the 81st Precinct stationhouse within 10 minutes. § 87(2)(b) went to the stationhouse to file a complaint against the officers who entered her house and to obtain a copy of the warrant. § 87(2)(b) arrived at approximately 7:30 a.m. At the desk of the stationhouse, § 87(2)(b) spoke to SGT Steven Slade, who was identified by § 87(2)(b) and who called in the complaint to the CCRB. SGT Slade was described as a male in a blue uniform with chevrons on his sleeves. § 87(2)(b) explained to SGT Slade what had occurred earlier in the day. SGT Slade provided § 87(2)(b) a Civilian Complaint Form to fill out, which she did. § 87(2)(b) did not speak to anyone else at the stationhouse at this time, beyond salutations and pleasantries.

While she waited, § 87(2)(b) entered the stationhouse with numerous officers, one of whom was PO Brown. § 87(2)(b) told SGT Slade that PO Brown was one of the officers she was filing a complaint against. SGT Slade provided her with PO Brown's badge number. § 87(2)(b) was taken away with the officers. PO Diery Louis, who was identified by § 87(2)(b) and who was described as a dark tan "West Indies" male officer with a bald head, overheard her complaint about PO Brown being in her room while she dressed, and stated, "Who would want to do that?" PO Louis was behind the desk when he said this. § 87(2)(b) felt insulted that he would call her a liar and she said as much. PO Louis lunged at her while SGT Slade and PO Antoinette Santana, identified by the investigation and described as a 5'2" Hispanic female in uniform, held his arms.

§ 87(2)(b) asked SGT Slade to file a complaint against PO Louis. SGT Slade informed her that it would take a while and started to prepare her paperwork. § 87(2)(b) agreed to wait and sat in the vestibule of the stationhouse. While she waited, she and PO Louis spoke back and forth. PO Louis stuck his tongue out at her. She said to him, "You are laughing now, but you're going to be crying when I fill out that report." PO Louis stated that she was under arrest and approached her with his handcuffs out. § 87(2)(b) has had a history of back problems and she had a herniated disc. She was afraid that PO Louis's handcuffing her would cause injury to her back. She cried out for help. PO Louis grabbed her right wrist, lifted it to breast level at her side and bent in an "L" shape. As PO Louis attempted to place her arm behind her back, § 87(2)(b) turned in the same direction, telling him she had a herniated disc. She was handcuffed and taken to a holding cell.

While she was in the holding cell, EMS arrived at her request. An officer told her that even if she went with EMS she would be returned to the holding cell. § 87(2)(b) declined medical attention at that point as she wanted to leave the stationhouse as soon as possible. At one point she spoke with DET Steve Laumonier, who she later learned was the officer investigating her brothers. He informed her that he was going to attempt to get her released and that she had to "play the game." One of the officers told her that she was going to be released with a disorderly conduct summons. § 87(2)(b) was released from the holding cell without a summons. She left the stationhouse and later that day she went to § 87(2)(b).

A few days after the incident, § 87(2)(b) learned from her neighbor, who lived in § 87(2)(b) in Brooklyn and whose name she did not know, that officers pushed past his wife, identified by the investigation as § 87(2)(b) and entered the building to gain access to the

roof. She also discovered after the incident that her dining room door was broken and would not close properly.

Witness: § 87(2)(b)

- § 87(2)(b), *black, male, § 87(2)(b) bald, and brown eyes. At the time of this interview, § 87(2)(b) lived in Georgia.*

Telephone Statement

§ 87(2)(b) provided the following statement over the telephone on January 21, 2014 (encl. C22-23). A follow up call was made to § 87(2)(b) on August 26, 2014, to have him sign the verification form in front of a notary. To date, § 87(2)(b) has not returned the notarized verification form.

Early in 2013, § 87(2)(b) had a dispute with another individual regarding the ownership of certain property. This individual pressed charges against § 87(2)(b) following this dispute. § 87(2)(b) could not recall what date he was arrested on in relation to this case, but the investigation determined that he was arrested on § 87(2)(b). § 87(2)(b) was arrested at his house at § 87(2)(b) by six plainclothes officers which he believed were from the "apprehension unit." § 87(2)(b) was present for his first arrest. The warrant officers were also looking for § 87(2)(b)'s brother, § 87(2)(b). § 87(2)(b) informed the officers that § 87(2)(b) did not live at that location.

On May 9, 2013, § 87(2)(b) left for work early in the morning. While he was riding the bus to work, he received a telephone call from § 87(2)(b). § 87(2)(b) was upset and informed § 87(2)(b) that officers had entered his house. She explained to him that these were the same officers that apprehended him. § 87(2)(b) spoke with SGT Eric Samuels, who was identified by the investigation, over the telephone. § 87(2)(b) recognized SGT Samuels' voice as belonging to a heavyset black male officer who was present for his prior arrest. § 87(2)(b) told the officer to leave his house and that they did not have a right to be inside the location. SGT Samuels stated that § 87(2)(b) left the front door open, which he denied. SGT Samuels asked him where his brother § 87(2)(b) was. § 87(2)(b) reminded SGT Samuels that he had already told them that § 87(2)(b) does not live there. SGT Samuels did not ask about § 87(2)(b)'s whereabouts. § 87(2)(b) informed SGT Samuels that he was going to return home to speak with the officers. It took § 87(2)(b) 45 minutes to return home. When he arrived, the house was empty. His neighbor, an unknown male, stated that police officers entered the house next door, pushed past a female, known to the investigation as § 87(2)(b) and went to the roof. Upon examining the roof, § 87(2)(b) realized that the "hatch" which provided access from the house to the roof was open. The hatch has bolts to keep the latch in place. These bolts were broken, and the hatch was open, causing § 87(2)(b) to believe that the officers had entered through his roof.

SGT Samuels and the other officers who apprehended him in April have not been in contact with him since this day. At the time of his interview, § 87(2)(b) believed that he did not have any open warrants.

Witness: § 87(2)(b)

- § 87(2)(b), *female, black, § 87(2)(b) black hair, and black eyes.* § 87(2)(b)

CCRB Statement:

§ 87(2)(b) was interviewed by the CCRB on September 24, 2013 at § 87(2)(b) in Brooklyn (encl. C18-21).

On May 9, 2013, at approximately 6:40 a.m., § 87(2)(b) was alone in her apartment at § 87(2)(b), on the second floor in Brooklyn. She heard her bell ring for the front door. When she answered, DET Key, who was identified via the investigation and who was described as a black male officer dressed in plainclothes and who had a gold shield, was there. He informed her that he needed to gain access to her roof, and asked if he could pass through her building to go to the roof. DET Key did not provide the reason he needed to gain access to the roof. § 87(2)(b) let him pass. To gain access to the roof, DET Key walked up the staircase, which is a common area of the apartments, to an access point on the third floor. The roof access has an internal lock that could be opened by hand on the inside. § 87(2)(b) looked down the street and she saw PO Ortiz, who was identified via the investigation and who was described as a Hispanic male officer dressed in plainclothes, standing in front of § 87(2)(b) her next door neighbor's house. § 87(2)(b) looked out the back window and saw PO Zocchia, who was identified via the investigation and who was described as a white male officer in plainclothes, climbing over a wall that leads to the back of § 87(2)(b).

§ 87(2)(b) did not watch further and she did not see the officers enter § 87(2)(b) house. § 87(2)(b) did not know why the police were at her neighbor's house and she did not know what the outcome of that visit was. § 87(2)(b) did not see DET Key leave from her building, but noted that he did not have to exit through her actual apartment, as the exit was through the common area. § 87(2)(b) did not see any other officer follow DET Key upstairs. § 87(2)(b) left her house within an hour of answering her door. She did not see the officers when she left.

On May 10, 2013, the owner of the building told her that he discovered that the roof access had never been closed. The next day, § 87(2)(b) was speaking with someone from the neighborhood, she did not know who, who told her that the officers had crossed over the roof to § 87(2)(b).

NYPD Statements:

Subject Officer: PO WILLIAM BROWN

- § 87(2)(b) old, white, male, § 87(2)(b) brown hair and brown eyes.
- On May 9, 2013, PO Brown was assigned to Brooklyn North Warrants with PO Zocchia, SGT Samuels, and PO Ortiz from 4:27 a.m. to 1:00 p.m. PO Brown was not in uniform and was assigned to unmarked police van number § 87(2)(e).

Memo Book

At 6:40 a.m. PO Brown arrived at § 87(2)(b) in Brooklyn for I-Card #§ 87(2)(b) [for § 87(2)(b)]. The door to the location was open. The defendant's sister approached the investigating officer and became irate due to the fact we were looking for another one of her family members. Search of location yielded negative results. At 7:20 a.m., PO Brown resumed patrol. At 8:50 a.m., PO Brown arrested § 87(2)(b) at § 87(2)(b) and at 9:15 a.m. he arrived at the 81st Precinct (encl. D1-3).

CCRB Statement:

PO Brown was interviewed on July 30, 2013 and April 10, 2014, at the CCRB (encl. D4-5ii).

On May 9, 2013, at approximately 6:40 a.m., PO Brown, SGT Samuels, PO Zocchia, and PO Ortiz arrived at § 87(2)(b) in Brooklyn. Two brothers, § 87(2)(b) and § 87(2)(b) were wanted on an I-Card investigation and were known to live at this location. PO Zocchia was assigned the investigation into § 87(2)(b) and PO Brown was assigned the investigation into § 87(2)(b).

On April 15, 2013, PO Brown went to the location to arrest § 87(2)(b) on an open arrest

warrant and to investigate the I-Card case. § 87(2)(b) was apprehended at this time. The investigation determined that an arrest warrant was issued for § 87(2)(b) on § 87(2)(b) for § 87(2)(b). PO Brown explained that once a perpetrator is apprehended, he is handed over to the detective squad to process the arrest. On April 15, 2013, § 87(2)(b) told PO Brown that § 87(2)(b) was in Georgia and that he would return on May 3, 2013.

PO Brown performed an ADW search and an E-CRIMS search and found that the warrant PO Brown had arrested § 87(2)(b) for on April 15 was not vacated, for reasons unknown to PO Brown. PO Brown did not contact the detective squad to find out why the warrant had not been cleared. He did not make any entries in his memo book for May 9 that he intended to arrest § 87(2)(b) on the warrant, because the Warrant Squad is interested in the seven major crimes and he only notes events related to those crimes. PO Brown intended to arrest § 87(2)(b) in relation to the I-Card case. § 87(2)(b) did not have any open warrants at the time.

Upon arriving at the location, PO Zocchia went to a public area behind the house. PO Brown, SGT Samuels, and PO Ortiz went to the front door. The front door was unlocked and ajar. The front door led to a vestibule where there was another door to § 87(2)(b)'s house. PO Brown knocked on the external door and announced that they were police. PO Brown and the other officers entered into the vestibule of the house. § 87(2)(b) came downstairs and approached the officers. PO Brown and SGT Samuels explained that they had a warrant for § 87(2)(b) and an I-Card for § 87(2)(b) and that they needed to come in for these reasons. § 87(2)(b) was irate that the officers had returned to apprehend another family member. § 87(2)(b) yelled that this was bullshit and similar things to express her dissatisfaction that officers were looking to apprehend both of her brothers. The officers explained that they had a warrant for one of her brothers and an on-going investigation into her other brother and that they needed to come in. § 87(2)(b) verbally allowed the officers to enter her house, though she was unhappy that officers were there to apprehend her family members. § 87(2)(b) accompanied the officers into every room on the first and second floor. None of the doors were damaged as a result of this search. PO Brown observed § 87(2)(b) make a telephone call during the search, but he assumed that she was attempting to contact § 87(2)(b). He did not know that she had called 911. The search revealed no results, so the officers left.

PO Brown did not go to the next door neighbor's house to gain access to the house. PO Brown did not see any other officer enter through the roof of the house. PO Brown did not see any officer enter the neighbor's house to gain access to § 87(2)(b) house.

PO Brown saw § 87(2)(b) in the 81st Precinct stationhouse. PO Brown did not speak with § 87(2)(b) nor did he know why she was at the stationhouse. § 87(2)(b) was sitting in the waiting area alone. PO Brown did not interact with § 87(2)(b) at the stationhouse nor did he see any other officer interact with § 87(2)(b) at the stationhouse.

PO Brown affirmed that he was present on April 15, 2013 when § 87(2)(b) was arrested. PO Brown also affirmed that the arrest on April 15, 2013 was for the same warrant that PO Brown intended to arrest him for on May 9, 2013. There was no additional follow up action to locate and arrest § 87(2)(b) after May 9, 2013. PO Brown explained that Warrant Section's focus is the seven major felonies and that bench warrants are of secondary importance. If there is a bench warrant, the Warrant Section will arrest the individual, but their primary focus is the major crimes.

Subject Officer: SGT ERIC SAMUELS

- § 87(2)(b) old, black, male, § 87(2)(b), black hair, and brown eyes.
- On May 9, 2013 SGT Samuels was assigned to warrant enforcement with DET Khan and DET Key from 4:15 a.m. to 12:50 p.m. He was dressed in plainclothes and assigned to motor vehicle number § 87(2)(e), § 87(2)(f).

Memo Book

At 6:46 a.m. arrived at § 87(2)(b) in Brooklyn for I-Card § 87(2)(b). At 7:20 a.m., negative results. The front door was open and the female inside was irate and uncooperative (encl. D6-7).

CCRB Statement

SGT Samuels was interviewed at the CCRB on October 7, 2013 (encl. D8-9).

On May 9, 2013, at approximately 6:46 a.m., SGT Samuels arrived at § 87(2)(b) in Brooklyn after being called to the location by other members of the field team, PO Brown, PO Zocchia, and PO Ortiz. SGT Samuels arrived with DET Khan and DET Key. SGT Samuels arrived with the team to serve a bench warrant for one individual and an I-card for another, known to the investigation as § 87(2)(b) and § 87(2)(b) respectively. SGT Samuels had responded to this location approximately one month before and arrested § 87(2)(b) on a different warrant or on an I-Card. SGT Samuels did not recall what § 87(2)(b) was charged with during his prior arrest. § 87(2)(b) was present for the earlier arrest at that location.

DET Khan and DET Key entered a neighbor's house (he did not recall which neighbor) to gain access to the roof. DET Key and DET Khan did not enter § 87(2)(b). They went to the roof to ensure that no one escaped from the roof. PO Zocchia was stationed in the back to ensure that no one escaped from the back and he did not enter § 87(2)(b) on this date. SGT Samuels, PO Ortiz, and PO Brown approached the front door of § 87(2)(b) and the door was open. They knocked on the door and announced that they were with the NYPD. No one responded and they walked into the apartment. § 87(2)(b) came down the stairs and said, "What the fuck are you doing in my house?" § 87(2)(b) was irate and cursed at the officers for being inside of her house. SGT Samuels and PO Brown informed § 87(2)(b) that they were at the location to serve a bench warrant for her brother. § 87(2)(b) asked them to get out of her house and they explained again their reason for being there. § 87(2)(b) continued to curse at the officers. SGT Samuels searched the basement and PO Brown and PO Ortiz searched upstairs for § 87(2)(b)'s brothers. § 87(2)(b) called § 87(2)(b) and gave the phone to SGT Samuels. § 87(2)(b) was upset that the officers were in his house. SGT Samuels spoke with § 87(2)(b) over the telephone and informed him of their reason for being in his house. After ascertaining that § 87(2)(b) was not home, SGT Samuels and the field team left the location. SGT Samuels did not break, nor did he see anyone break, a door in § 87(2)(b)'s house during the search. SGT Samuels did not return to the 81st Precinct stationhouse on this date and he did not see § 87(2)(b) at the stationhouse.

Subject Officer: PO ERIC ORTIZ

- § 87(2)(b) old, male, Hispanic, § 87(2)(b), brown hair, and brown eyes. PO Ortiz was assigned to warrant section on May 9, 2013, with PO Zocchia and PO Brown from 4:27 a.m. to 1:00 p.m. He was dressed in plainclothes and assigned to an unmarked cargo van #§ 87(2)(b). PO Ortiz was promoted to detective after he was interviewed at the CCRB.

Memo Book

At 6:40 a.m., PO Ortiz arrived at § 87(2)(b) for I-Card § 87(2)(b) [for § 87(2)(b)]. At 7:20 a.m., PO Ortiz left § 87(2)(b). At 8:35 a.m., PO Ortiz was present for the arrest of § 87(2)(b) at § 87(2)(b) and at 9:15 a.m. he arrived at the 81st Precinct stationhouse (encl. D10-12). This entry was written on the fly sheet of his memo book.

CCRB Statement:

PO Ortiz was interviewed at the CCRB on October 3, 2013 (encl. D13-14).

On May 9, 2013, at approximately 6:40 a.m., PO Ortiz and PO Brown arrived at § 87(2)(b) in Brooklyn. PO Brown and PO Ortiz dropped PO Zocchia off at the back of § 87(2)(b) in Brooklyn so that he could ensure that no one escaped from the back window. PO Brown and PO Ortiz approached the door to § 87(2)(b). They were looking for two individuals. One individual had an I-Card, known to the investigation as § 87(2)(b) and the other individual had an I-Card and a warrant, known to the investigation as § 87(2)(b). SGT Samuels arrived at § 87(2)(b) shortly after PO Brown and PO Ortiz and entered the apartment with them. PO Ortiz could not recall if SGT Samuels arrived with anyone else.

The exterior door was open and across a small foyer, the interior door was open as well. PO Ortiz and PO Brown knocked on the exterior door of the building. PO Brown and PO Ortiz walked into the foyer and knocked on the interior door and PO Ortiz heard someone walking around upstairs. PO Ortiz and PO Brown identified themselves as police officers. A female, known to the investigation as § 87(2)(b) came down the stairs and asked the officers who they were. PO Brown told her who they were and the reason that they were there. § 87(2)(b) allowed the officers to come in to the house. § 87(2)(b) was fully clothed when she answered the door and she did not ask to have time alone to get dressed. § 87(2)(b)'s demeanor was, at first, surprised when the officers arrived.

§ 87(2)(b) became aggravated because the same officers were at her apartment earlier in the year for her brothers. PO Ortiz knew that she was aggravated because she asked the officers to leave. PO Ortiz and PO Brown explained to her that they had a bench warrant and an open investigation for her brothers. § 87(2)(b) asked the officers to leave again, but PO Brown and PO Ortiz informed § 87(2)(b) that once they finished conducting their investigation that they would leave. PO Brown interacted with § 87(2)(b) mainly, as he was the lead investigator on the case, but PO Ortiz did explain to § 87(2)(b) their reason for being there. PO Ortiz searched the main floor of the house and PO Brown searched the rest of the house for the two brothers. PO Ortiz did not know which brother had the warrant nor did he know the specifics of the case, as it was PO Brown's case and he was only there to provide back-up. PO Ortiz was one of the officers who arrested § 87(2)(b)'s brother earlier in the year at this location, but he did not know if this was for the same investigation or a different investigation. PO Brown and PO Ortiz looked for the individuals inside of the location; they were not there and the officers left the location. PO Ortiz did not damage, nor did he see any officer damage, any of the doors in the location. PO Ortiz did not speak with anyone on § 87(2)(b)'s telephone and did not see any officer speak with someone on § 87(2)(b)'s telephone. PO Ortiz did not know that § 87(2)(b) called 911. PO Zocchia did not enter the residence.

PO Ortiz saw § 87(2)(b) in the visitor waiting area in the 81st Precinct stationhouse later that same day. She was speaking to the telephone switchboard operator, but he could not hear what they were talking about. He did not interact with her in the stationhouse. He did not know why she was there. He did not know that she was arrested at the stationhouse. He did not see § 87(2)(b) leave the stationhouse.

Witness Officer: PO JONATHON ZOCCHIA

- § 87(2)(b) old, male, white, § 87(2)(b), brown hair, and brown eyes.
- On the date of incident, PO Zocchia was assigned to Brooklyn North Warrant Enforcement with PO Ortiz and PO Brown from 4:27 a.m. to 1:00 p.m. He was dressed in plainclothes and assigned to an unmarked van. At the time of the incident, PO Zocchia was a police officer assigned to Warrant Section, he has since been promoted to sergeant and assigned to the 103rd Precinct.

Memo Book

At 6:40 a.m., PO Zocchia arrived at § 87(2)(b) in Brooklyn for I-Card § 87(2)(b) with negative results. At 7:20 a.m., he resumed regular patrol. At 8:45 a.m. PO Zocchia was present for the arrest of § 87(2)(b) at § 87(2)(b) and at 9:15 a.m. he arrived at the 81st Precinct stationhouse (encl. D24a-c).

CCRB Statement

PO Zocchia was interviewed at the CCRB on July 28, 2014 (D24d-e).

On May 9, 2013, PO Zocchia arrived at § 87(2)(b) in Brooklyn with PO Ortiz and PO Brown at approximately 6:40 a.m. PO Zocchia explained that the case was split between himself and PO Brown. PO Zocchia was assigned to § 87(2)(b)'s portion of the investigation. § 87(2)(b) had a warrant for his arrest as well as the I-Card. § 87(2)(b) was arrested on the warrant and I-Card on April 15, 2013 by PO Zocchia and the field team. PO Zocchia did not recall if he communicated to the 81st Precinct Detective Squad that § 87(2)(b) had an arrest warrant. It was not the warrant section's responsibility to clear out the warrants that individuals were arrested on. It is the responsibility of the courts to clear these warrants. The arrest warrant for § 87(2)(b) was still open on May 9, 2013. PO Zocchia did not know why it was still open. PO Zocchia did not recall if he performed the warrant check prior to going back to § 87(2)(b) or if another officer informed him that the warrant was still open. No one from the field team called the 81st Precinct Detective Squad to determine why the warrant was still open. PO Zocchia did not know why no follow up was made with 81st Precinct Detective Squad, noting only that he believed it was the court's responsibility to clear the warrant.

On May 9, 2013, SGT Samuels arrived at the incident location separately. PO Zocchia did not recall if other officers arrived with him. He was familiar with DET Key and DET Khan, but he could not recall if these officers were present during the incident. PO Zocchia never went to the front door of § 87(2)(b) on this incident date. SGT Samuels instructed PO Zocchia to guard the rear exit of the apartment to ensure that no perpetrators escaped. He did not hear anything inside the apartment, nor did he see anything that occurred inside the apartment. After approximately 10 minutes, PO Zocchia resumed patrol. He knew only that the visit to the location did not yield the perpetrator. He did not learn later of what occurred with SGT Samuels, PO Ortiz, and PO Brown at the location. He was shown a photograph of § 87(2)(b) and while he recognized her, he did not recall seeing her on the date of incident. PO Zocchia did not recall learning that § 87(2)(b) called 911 during the incident.

At 9:15 a.m., PO Zocchia arrived at the 81st Precinct stationhouse. He did not recall seeing § 87(2)(b) at the stationhouse, nor did he recall learning that she had been arrested at the stationhouse.

Witness Officer: DET MARLON KEY

- § 87(2)(b) *old, male, black, § 87(2)(b), black hair (dreads), and brown eyes.*
- *On May 9, 2013, DET Key was assigned to Warrant Enforcement with SGT Samuels, PO Brown, PO Ortiz, DET Khan, and PO Zocchia from 4:27 a.m. to 3:00 p.m. He was dressed in plainclothes and assigned to an unmarked motor vehicle #18187.*

Memo Book

At 6:40 a.m. DET Key arrived at § 87(2)(b) with DET Khan and SGT Samuels for I-Card number § 87(2)(b). At 7:20 a.m. they left the location (encl. D15-17).

CCRB Statement

DET Key was interviewed at the CCRB on October 22, 2013 (encl. D18-19).

On May 9, 2013, at approximately 6:40 a.m., DET Key arrived at § 87(2)(b) in Brooklyn with SGT Samuels and DET Khan. DET Key and DET Khan went to the roof to ensure that no one escaped from the roof. DET Key knocked on § 87(2)(b) to gain access to the roof. As he did this, SGT Samuels, PO Brown, and another officer, identified by the investigation as PO Ortiz, approached § 87(2)(b)'s door. § 87(2)(b)'s door was not open at this time. DET Key spoke with the neighbor and went to the roof with DET Khan. DET Key and DET Khan waited on the roof until they received a radio call from SGT Samuels telling them to come down. DET Key and DET Khan exited the roof and walked inside of § 87(2)(b)'s house through the front door.

§ 87(2)(b) was in the living room, which was to the left of the entryway and within sight of the entryway. § 87(2)(b) appeared to be irate with the officers, which he could tell by the raised level of her voice. § 87(2)(b) was fully clothed. DET Key did not search the house for either brother nor did he see where the officers searched. He did not see § 87(2)(b) make any telephone calls, nor did he learn that she had called 911 at any time during their encounter. § 87(2)(b) asked the officers to leave when they had finished their search.

DET Key could not recall if he ever responded to this location in the past. He stated that the bench warrant was for § 87(2)(b) for not paying a summons for drinking alcohol on the street and they were also looking for § 87(2)(b) in relation to an I-Card. DET Key noted that this was PO Brown's case. DET Key did not see § 87(2)(b) at the 81st Precinct stationhouse and he did not return to the 81st Precinct stationhouse at any point during his tour.

Witness Officer: DET SHIRAZ KHAN

- § 87(2)(b) old, male, Asian, § 87(2)(b), black hair, and brown eyes.
- On May 9, 2013, DET Khan was assigned to warrant enforcement from 4:27 a.m. to 1:00 p.m. with DET Key and SGT Samuels. He was dressed in uniform and assigned to an unmarked van.

Memo Book

At 6:00 a.m. DET Khan was en route to § 87(2)(b) with SGT Samuels and DET Key for I-Card § 87(2)(b) [for § 87(2)(b)]. At 6:40 a.m., DET Khan arrived. At 7:20 a.m., resumed patrol (encl. D21-22)

CCRB Statement

DET Khan was interviewed at the CCRB on November 27, 2013 (encl. D23-24) § 87(2)(g)

On May 9, 2013, at approximately 6:40 a.m., DET Khan arrived at § 87(2)(b) in Brooklyn with SGT Samuels and DET Key. They were called to the location by PO Brown who had a case at the house. DET Khan did not know what the case involved, whether it was for an I-Card or a warrant, or for whom they were looking. DET Khan was instructed to go to the roof by SGT Samuels to ensure that no one escaped from the roof. DET Khan could not recall whether or not § 87(2)(b) door was open when he went to the roof. By the time that DET Khan returned to street level, the other officers were in front of the house on the street. DET Khan did not see any officer enter the apartment, nor did he enter himself. DET Khan did not interact with the individual inside the apartment. DET Khan did not go to the 81st Precinct stationhouse after leaving this location, nor did he go to the 81st Precinct stationhouse at any other time during this date.

Witness Officer: DET STEVEN LAUMONIER

- § 87(2)(b) old, male, black, § 87(2)(b), brown hair, and brown eyes.
- DET Laumonier was assigned to investigations on May 9, 2013 from 8:00 a.m. to 4:00 p.m.

He was dressed in plainclothes and was not assigned a partner.

Memo Book

DET Laumonier did not have memo book entries related to this incident as he was not present for the arrest (encl. E8-10).

Arrest Reports

§ 87(2)(b) was arrested on April 15, 2013 for § 87(2)(b) by DET Laumonier (encl. E17-19). § 87(2)(b) was arrested on May 9, 2013 for § 87(2)(b) by DET Laumonier (encl. E11-13).

CCRB Statement

DET Laumonier was interviewed at the CCRB on September 9, 2014 (encl. E10a-b).

DET Laumonier reviewed the DD5 he prepared to order the I-Card for § 87(2)(b) and § 87(2)(b). DET Laumonier's attention was drawn toward the discrepancy between § 87(2)(b)'s name on the top of the DD5, the name in the narrative of the DD5, and § 87(2)(b)'s name on the same DD5 in regards to background searches performed (see encl. F21). DET Laumonier believed that he made some mistakes when transferring the names onto the DD5. The DD5 with § 87(2)(b)'s name at the top was for § 87(2)(b). DET Laumonier did not recall § 87(2)(b) having an active warrant. He did not recall officers from the warrant section informing him that § 87(2)(b) had an open warrant, and he did not recall any officers from the warrant section calling him to follow up about an open warrant for § 87(2)(b) after he was arrested. DET Laumonier did not have any responsibility to tell the ADA that § 87(2)(b) had an open warrant as it is entirely the ADAs duty to process the warrants after the arrest. DET Laumonier was only responsible for the I-Card and not any active warrants unrelated to the I-Card.

Subject Officer: PO DIERY LOUIS

- § 87(2)(b) *old, black, male, § 87(2)(b), black hair, and brown eyes.*
- *On May 9, 2013, PO Diery Louis was assigned to court from 8:00 a.m. to 4:35 p.m. without a partner. PO Louis was dressed in uniform and was not assigned to a motor vehicle.*

Memo Book

At 9:30 a.m., an arrest report prepared at the 81st Precinct stationhouse for § 87(2)(b) § 87(2)(b), § 87(2)(b) female, black, § 87(2)(b) DOB: § 87(2)(b). Defendant walked to the window while other officers brought a perp to precinct and started to scream and curse at officers. Perp then turned her attention to me and said that "I did make a certain way." I instructed perp to sit down and wait for the officers to finish with the perp in handcuffs. Defendant refused to step away from window and continued to scream and curse at me. I further instructed her either to sit down and wait or to leave. She refused. As I walked out and away from her, she got more angry and stated, "Fuck you, you fucking nigger. I should kill you all." Perp was placed under arrest by me and taken to the desk. She resisted by flailing her arms and refused to be handcuffed. Two other officers had to help place her in handcuffs. Desk sergeant was advised by me of the arrest and I was told that it will be a voided arrest and no summons is to be issued to defendant. Defendant was released by the desk without a summons and the arrest voided (encl. D25-28).

OLBS and Arraignment History

§ 87(2)(b) § 87(2)(b)
§ 87(2)(b) § 87(2)(b)

§ 87(2)(b) The arraignment history shows that § 87(2)(b)'s arrest was voided at the stationhouse at § 87(2)(b) (encl. D29-32).

CCRB Statement

PO Diery Louis was interviewed at the CCRB on July 22, 2013 (encl. D33-34).

On May 9, 2013, at approximately 9:30 a.m., PO Louis was behind the desk of the 81st Precinct preparing for his court assignment. PO Louis observed plainclothes officers bring in a perpetrator in handcuffs. § 87(2)(b) began yelling and screaming at the officers. § 87(2)(b) was cursing, saying “fuck” and other such profanities, to officers. She was screaming about her “baby daddy” being brought into the stationhouse. There were approximately seven other civilians in the stationhouse waiting, including children. The PAA and other officers asked § 87(2)(b) to stop cursing. She turned her attention to PO Louis and cursed at him. PO Louis asked § 87(2)(b) to sit down and wait for the officers to finish. § 87(2)(b) said to PO Louis, “Fuck you, you fucking nigger. I should kill you all.” At this point, § 87(2)(b) was considered in violation of § 87(2)(b). PO Louis approached § 87(2)(b) and said, “Turn around.” § 87(2)(b) did not turn around and she began to flail her arms. PO Louis and two other officers handcuffed § 87(2)(b). SGT Slade was present during the incident, but he did not assist in the handcuffing. § 87(2)(b) did not complain of pain nor did she inform PO Louis that she had a herniated disk in her back. § 87(2)(b) was brought to the desk sergeant, SGT Slade. § 87(2)(b) continued to be aggressive while she was handcuffed.

SGT Slade informed PO Louis that § 87(2)(b) was at the stationhouse to file a CCRB complaint about warrant officers entering her apartment. SGT Slade told PO Louis that § 87(2)(b) would be released without a summons and that the arrest would be voided. The arrest was voided on SGT Slade’s authority. SGT Slade told PO Louis that the arrest was voided as he did not want to have to contact IAB as she was at the stationhouse to file a complaint.

PO Louis stated that he did not stick his tongue out at § 87(2)(b). He also stated that he did not hear § 87(2)(b) say, “You are laughing now, but you are going to be crying when I fill out that report.” PO Louis did not interact with § 87(2)(b) further.

Other Officers Interviewed

- SGT Steven Slade was interviewed at the CCRB on October 16, 2013 (encl. D38-39). SGT Slade was assigned to the desk on the date of incident and therefore did not have any memo book entries. SGT Slade did not see PO Louis stick his tongue out at § 87(2)(b). SGT Slade stated that § 87(2)(b) began screaming in the stationhouse, but he did not see what provoked her. SGT Slade voided her arrest as he felt that her reason for being upset (officers entered her house) was reasonable.
- PO Antoinette Santana was interviewed at the CCRB on September 4, 2014 (encl. D40-41). PO Santana did not have memo book entries as she was assigned to administrative duties and was not required to maintain a memo book. PO Santana had no recollection of the incident after being provided with the details, photograph of § 87(2)(b) and reviewing the arrest report. PO Santana did not recall entering the arrest report. She did not recall seeing PO Louis stick his tongue out at anyone.

Medical Records

§ 87(2)(b) went to the emergency room on § 87(2)(b). She was diagnosed with a contusion to her upper arm and was prescribed an ice pack to be applied to the affected area (see privileged file).

NYPD Documents

DD5s for Warrant Section

On April 15, 2013, PO Brown, PO Zocchia, and SGT Samuels were present for the apprehension of § 87(2)(b) at § 87(2)(b) in Brooklyn under I-Card number § 87(2)(b) and under a warrant for docket § 87(2)(b). PO Brown spoke with § 87(2)(b) over the telephone. § 87(2)(b) who was wanted under the same Complaint Report, said that he was not in New York City and would not be returning until May 3, 2013. On May 9, 2013, PO Brown went to § 87(2)(b) in Brooklyn to search for § 87(2)(b) with negative results. § 87(2)(b) was apprehended at § 87(2)(b) in Brooklyn at 9:00 a.m. on May 9, 2013 (encl. H12-21).

DD5s for 81st Precinct Detective Squad

On April 15, 2013, DET Steve Laumonier cancelled the I-Card for § 87(2)(b) and all sections of the ADW and warrant search were conducted with negative results (encl. F31-32). On May 14, 2013, DET Laumonier cancelled the I-Card for § 87(2)(b) (encl. F38-39).

Arrest Warrant

An arrest warrant was ordered for § 87(2)(b) for docket number § 87(2)(b) (encl. E20). The warrant was issued on § 87(2)(b). His original offense was for § 87(2)(b). The address listed on the warrant was § 87(2)(b) in Brooklyn.

OCA Documents

§ 87(2)(b) [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

UF 61 Complaint

On April 1, 2013, § 87(2)(b) filed a criminal complaint with PO Manuel Torres of the 81st Precinct. He alleged that § 87(2)(b) and § 87(2)(b) entered his house and stole items from it (encl. F40-41).

I-Card

I-Card number § 87(2)(b) was issued for § 87(2)(b) on § 87(2)(b). It was assigned on April 10, 2013 and it was cancelled on May 15, 2013 (encl. H26).

Status of Civil Proceedings

- As of December 23, 2013, § 87(2)(b) has not filed a notice of claim in regards to this incident (encl.).

§ 87(2)(b) [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Civilian CCRB History

- This is the first CCRB complaint filed by § 87(2)(b) (encl. B8).

Subject Officers CCRB History

- PO Diery Louis has been a member of the service for eight years and there are no

substantiated CCRB allegations against him. He has had 43 allegations and 20 CCRB complaints filed against him (encl. B5-7).

- PO Eric Ortiz has been a member of the service for seven years and there are no substantiated CCRB allegations against him (encl. B3-4).
- PO William Brown has been a member of the service for five years and there are no substantiated CCRB allegations against him (encl. B1). This is the first CCRB complaint ever filed against PO Brown.
- SGT Eric Samuels has been a member of the service for 16 years and there are two substantiated CCRB allegations against him:
 - In 201304641, two allegations of improper entries and search were pled against SGT Samuels. The board recommended charges and the case is currently assigned to the CCRB Administrative Prosecution Unit (encl. B2).

Conclusion

Allegations Not Pled

§ 87(2)(b) alleged that DET Key and DET Khan entered her apartment. However, she did not see when these officers entered. DET Khan, DET Key, and SGT Samuels all agree that DET Khan and DET Key were not part of the initial group of officers to enter the apartment. § 87(2)(g)

§ 87(2)(b) alleged that officers broke her dining room door such that it would not close properly. § 87(2)(g)

§ 87(2)(g)

Identification of Subject Officers

SGT Samuels, PO Brown, and PO Ortiz all acknowledged entering and searching § 87(2)(b)'s house. PO Louis acknowledged arresting § 87(2)(b) at the 81st Precinct stationhouse.

Investigative Findings and Recommendations

Allegation A: Abuse of Authority— PO William Brown entered and searched § 87(2)(b) in Brooklyn.

Allegation B: Abuse of Authority—PO Eric Ortiz entered and searched § 87(2)(b) in Brooklyn.

Allegation C: Abuse of Authority—SGT Eric Samuels entered and searched § 87(2)(b) in Brooklyn.

§ 87(2)(b) alleged that on May 9, 2013, officers entered her apartment while she was sleeping. § 87(2)(b) lived with her brothers, § 87(2)(b) and § 87(2)(b). The officers told her that they were looking for § 87(2)(b). § 87(2)(b) recognized the officers from a previous interaction in April when they arrested § 87(2)(b). § 87(2)(b) was naked when the officers entered and she requested time to dress. When the officers were in her house, she called 911. § 87(2)(b) informed the 911 operator that officers had entered her house and that she was alone and scared. She told the 911 operator that the officers refused to show her a warrant, though they claimed to have one. § 87(2)(b) called § 87(2)(b) to let him know what was going on, and § 87(2)(b) spoke to SGT Samuels. After the officers left, § 87(2)(b) went to the 81st Precinct stationhouse to file a complaint.

§ 87(2)(b) testified that § 87(2)(b) called him on May 9, 2013, and informed him that officers had entered the apartment. § 87(2)(b) spoke with SGT Samuels over the telephone. SGT Samuels did not ask about § 87(2)(b)'s whereabouts, but he did ask where § 87(2)(b) was. § 87(2)(b) informed SGT Samuels that § 87(2)(b) did not live at that location. § 87(2)(b) told SGT Samuels that he was coming home to clear up the situation. It took § 87(2)(b) approximately 45 minutes to return to the apartment. No one was present in the apartment when he returned.

PO Brown, SGT Samuels, and PO Ortiz testified that they arrived at the location on May 9, 2013 to find § 87(2)(b) on an I-Card and § 87(2)(b) on a warrant. PO Brown intended to arrest § 87(2)(b) on the same warrant that he had previously arrested him on earlier in the year. SGT Samuels and PO Ortiz acknowledged being present for § 87(2)(b)'s prior arrest. PO Brown did not know why the warrant was not vacated after § 87(2)(b)'s prior arrest and, neither PO Brown nor PO Zocchia followed up to determine why the warrant was still appeared active. According to PO Brown, after May 9, 2013, there were no follow-up attempts to apprehend § 87(2)(b). The documents PO Brown prepared in regards to the incident note only that the officers were looking for § 87(2)(b) and make no note of investigative actions to locate § 87(2)(b). None of the officers had an entry in their memo books regarding § 87(2)(b) and SGT Samuels both affirmed that SGT Samuels spoke with § 87(2)(b) over the telephone and § 87(2)(b) affirmed that the sergeant questioned him only about § 87(2)(b)'s whereabouts.

PO Brown, PO Ortiz, and SGT Samuels all stated that the front door to § 87(2)(b) was ajar when they arrived at the location. DET Key stated that the door was not open when he approached the neighbors to enter the roof. PO Brown, PO Ortiz, and SGT Samuels stated that they knocked on the front door and announced that they were police upon entering. They stated that § 87(2)(b) came down, fully clothed and that she cursed at the officers for being inside of her house. PO Ortiz and SGT Samuels stated that § 87(2)(b) asked them to leave her house. PO Brown stated that § 87(2)(b) was angry, but that she consented to the officers' entry.

§ 87(2)(g)

The DD5s for the 81st Precinct Detective Squad show that § 87(2)(b) was arrested on April 15, 2013 in regards to an open I-Card investigation. On the same day, DET Laumonier cancelled the I-Card for § 87(2)(b). The DD5s for Brooklyn North Warrant Section show that PO Brown, PO Zocchia, and SGT Samuels were present for § 87(2)(b) arrest under warrant number § 87(2)(b) on April 15, 2013. [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

§ 87(2)(b) The DD5 for May 9, 2013, prepared by PO Brown, stated only that they went to § 87(2)(b) to find § 87(2)(b).

Information contained in a warrant must be verified by basic inquiries, and should be of a relatively recent vintage. *People v. Fakoya*, 901 N.Y.S.2d 909 (Sup. Ct., Kings Cty. 2009) (A6-A11) (See also *People v. Kenyatta* 2013 N.Y. Misc. LEXIS 5790 (Crim. Ct. Bronx Cty. 2013) (encl. A1-5) (noting that an arrest on an invalid arrest warrant is invalid and any evidence seized as a result must be suppressed)).

Warrantless entries into private residences for purpose of arrest are impermissible except where an officer has consent or exigent circumstances. *People v. Farquharson*, 24 Misc.3d 1232A (Sup. Ct. Bronx Cty. 2009) (encl. A19-24). An I-Card does not permit officers to enter the premises of a subject without consent or in the absence of exigent circumstances. (encl. A15-18)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

Allegation D: Discourtesy—At the 81st Precinct stationhouse, Diery Louis acted discourteously toward § 87(2)(b)

§ 87(2)(b) stated that while at the stationhouse filing a complaint against officers, she observed PO Brown entering the stationhouse with her brother, § 87(2)(b). § 87(2)(b) pointed out PO Brown to SGT Slade, who was processing her complaint report for her, to indicate that PO Brown was the officer about whom she was complaining. SGT Slade provided her with PO Brown's badge number, "1099." While she was explaining to SGT Slade that PO Brown was the officer that was watching her get dressed, PO Louis said, "Who would want to do that?" § 87(2)(b) was offended by this statement and she told PO Louis as much. PO Louis lunged at her and SGT Slade and PO Santana held his arms to hold him back. § 87(2)(b) made a request to SGT Slade to file a complaint against PO Louis. SGT Slade began processing her complaint, and § 87(2)(b) sat in the waiting room. PO Louis continued to antagonize § 87(2)(b) by sticking his tongue out. § 87(2)(b) told him that he was not going to be so happy when she filed her complaint against him and PO Louis told her she was under arrest. He arrested her. About an hour later, her arrest was voided by Sgt. Slade. [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

This is § 87(2)(b)'s only CCRB complaint.

PO Louis stated that he observed plainclothes officers escort § 87(2)(b) into the stationhouse at which point § 87(2)(b) began to yell that he was her "baby daddy" and began using profanities. Officers asked § 87(2)(b) to stop cursing and § 87(2)(b) began yelling at PO Louis, saying, "Fuck you, you fucking nigger. I should kill you all." PO Louis arrested § 87(2)(b) for § 87(2)(a) 160.50. SGT Slade was present when she was screaming and when PO Louis arrested § 87(2)(b) but he did not assist in handcuffing her. SGT Slade informed PO Louis that he was voiding PO Louis's arrest and that § 87(2)(b) would be released without a summons. SGT Slade told PO Louis that he voided the arrest as § 87(2)(b) was at the stationhouse to file a complaint and he did not want to have to call IAB.

SGT Slade processed § 87(2)(b)'s complaint against the officers that entered her house. He forwarded this complaint to the CCRB and IAB. SGT Slade testified that he did not know what provoked § 87(2)(b) but he heard § 87(2)(b) screaming at PO Louis, who then arrested her. SGT Slade voided § 87(2)(b)'s arrest as she had a reason for being upset (officers entered her house). PO Brown, PO Ortiz, and PO Zocchia all noted in their memo books that they returned to the 81st Precinct stationhouse at approximately 9:15 a.m. with § 87(2)(b) around the same time that § 87(2)(b) was filing her complaint. PO Brown and PO Ortiz both recalled seeing § 87(2)(b) at the stationhouse, but they did not note her yelling or screaming and they did not know she had been arrested. PO Zocchia did not recall seeing § 87(2)(b) at the stationhouse. PO Brown saw her sitting in the waiting area alone.

PO Santana did not recall the incident at all and she did not recall drafting the arrest report which bears her name and tax registry number as the officer who entered the report.

§ 87(2)(g)

§ 87(2)(g) [REDACTED]

§ 87(2)(g)

§ 87(2)(g), § 87(4-b)

Investigator: _____	<u>Lily Carayannis</u>	<u>September 16, 2014</u>
Signature	Print	Date
Supervisor: _____	_____	_____
Title/Signature	Print	Date
Reviewer: _____	_____	_____
Title/Signature	Print	Date
Reviewer: _____	_____	_____
Title/Signature	Print	Date